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Case Number: 25STCV09944 Hearing Date: July 27, 2026 Dept: 516

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Case Name: Crist, et al. v. LA Colima 2010

LLC, et al.

Case

No.: 25STCV09944

Matter: Demurrer with Motion to Strike

Moving

Party: Defendants LA Colima

2010 LLC and Apartment Management Consultants, LLC

Responding Party: Plaintiffs Wesley Crist and Marlena

Whisner

Tentative

Ruling: Defendants LA Colima 2010

LLC and Apartment Management Consultants, LLC's demurrer is sustained.

Defendants

LA Colima 2010 LLC and Apartment Management Consultants, LLC's motion to strike is granted.

Plaintiffs

Wesley Crist and Marlena Whisner ("Plaintiffs") filed this action against

Defendants LA Colima 2010 LLC and Apartment Management Consultants, LLC

("Defendants") and Does 1 through 100. The First Amended Complaint ("FAC") alleges five causes of action for: (1) breach of contract; (2) breach of implied warranty of habitability; (3) nuisance; (4) intentional infliction of emotional distress; and (5) negligence.

Defendants

demur to Plaintiffs' fourth cause of action and moves to strike punitive damages and prayer for attorney's fees . Plaintiffs oppose.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and

Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendants

contend that the parties met and conferred in accordance with statute. (Frankel Decl., ¶ 2.) However, the parties did not fulfill their meet and confer obligations. Defendants declare that on June 3, 2026, they sent written correspondence to Plaintiffs. (Id. at ¶ 3.) Code of Civil Procedure section 430.41 requires that the parties meet and confer “in person, by telephone, or video conference.” (Code Civ. Proc. § 430.41, subd. (a).) Thus, the parties did not fulfill their meet-and-confer obligations. In the interest of judicial efficiency, the Court will address the merits of Defendants’ demurrer and motion to strike.

Demurrer

Defendants

demur to Plaintiffs’ fourth cause of action for failure to allege sufficient facts to constitute a cause of action.

Fourth

Cause of Action-Intentional Infliction of Emotional Distress

“The

elements of a prima facie case of intentional infliction of mental distress are (1) outrageous conduct by the defendant, (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of the emotional distress.” (Newby v. Alto Riviera Apartments (1976) 60 Cal.App.3d 288, 295.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest;

(2) knows the plaintiff is susceptible to injuries through mental distress; or
(3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.”) (Ibid.) “A defendant’s conduct is “outrageous” when it is so ““extreme as to exceed all bounds of that usually tolerated in a civilized community.””” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050–1051.)

Defendants

argue that Plaintiffs fail to allege any conduct by Defendants that would constitute extreme and outrageous. (Mot., 6:8-9.) The FAC alleges that:

45. The conduct of defendants as herein alleged was egregious, extreme and outrageous and done with reckless disregard of the likelihood to inflict severe emotional distress. Specifically, the defendants have completely failed in their duty as a landlord to maintain the SUBJECT PROPERTY and have allowed slum living conditions to persist which spread infection, sickness and disease.

46. The defendants’ conduct was, reckless, and or intentional and malicious, and done for the purpose of causing Plaintiff to suffer humiliation, mental anguish and emotional distress.

(FAC, ¶¶ 45-46.)

Defendants cite to Hughes to argue that Plaintiffs’ allegations do not meet the high bar to allege extreme and outrageous conduct. However, the Court finds Defendants’ reliance on Hughes inapplicable because in Hughes, the Court addressed intentional infliction of emotional distress in the context of sexual harassment. (Hughes, supra, 46 Cal.4th at p. 1051.) The present dispute between the parties concerns allegations regarding condition of the “Subject Property” owned by Defendants and leased by Plaintiffs.

In opposition, Plaintiffs argue that they have alleged sufficient facts for a viable cause of action per Stoiber. In Stoiber, the Court did address whether a tenant may state a cause of action in tort against a landlord for failure to keep the premises in a lawful state of habitability, which the court found that a tenant could “by pleading proper facts”. In Stoiber, the Court reversed

the trial court ruling on the demurrers and judgments on the pleadings. (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 932.)

However, the Court is persuaded by Defendants' argument that the FAC lacks allegations of sufficient facts including extreme and outrageous conduct by Defendants. Plaintiffs have not presented the Court with any legal authority that the allegations of the FAC are sufficient to survive demurrer as to the fourth cause of action, nor does the Court find that Plaintiffs' allegations are sufficient.

Thus, the demurrer as to the fourth cause of action is sustained.

Motion
to Strike

Defendants
move to strike the following portions of Plaintiffs' FAC: (1) ¶ 21; (2) ¶ 32; (3) ¶ 42; (4) ¶ 46; (5) ¶ 48; (6) prayer for punitive damages; and (7) prayer for attorney's fees.

Punitive Damages

To state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has engaged in oppression, fraud, or malice. (Civ. Code § 3294, subd. (a).) "'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294 subd. (c)(1).) Punitive damages thus require more than the mere commission of a tort. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (Grieves).)

The claim for punitive damages may not rest on conclusory allegations of oppression, fraud, or malice; instead, it must be supported by factual allegations that

warrant such a conclusion. (Smith v. Superior Court (1992) 10 Cal. App. 4th 1033, 1041-1042. (Court of Appeal issued peremptory writ directing trial court to issue order striking plaintiff's prayer for punitive damages because "[t]he sole basis for seeking punitive damages are ... conclusory allegations" which were "devoid of any factual assertions supporting a conclusion [defendants] acted with oppression, fraud or malice."))

Defendants

argue that Plaintiffs' FAC does not contain any allegations that warrant punitive damages because Plaintiffs' rely on conclusory allegations. Defendants also argue that even taking the allegations as true, lack of timely maintenance does not constitute despicable behavior or conscious disregard.

In

opposition, Plaintiffs argue that punitive damages are warranted because Plaintiffs' counsel has tried similar cases where the jury has awarded punitive damages. (Opp., 3:27-28.) However, this is not a legal argument to prevail in Defendants' motion to strike. Plaintiffs cite to thirteen cases, but these cases do not support Plaintiffs argument that the FAC alleges sufficient facts in the case before the Court to prevail on the motion to strike. As addressed above, the question is not whether in some cases, a tenant can pursue punitive damages against their landlord. The question before the Court is whether sufficient allegations have been made to support a claim for punitive damages. The FAC does not meet that requirement. Plaintiff makes conclusory statements, and these conclusory statements are not sufficient to support a request for punitive damages.

Thus, the

Court grants Defendants' motion to strike punitive damages as to each paragraph and prayer.

Attorney's Fees

"California

follows the "American rule," under which each party to a lawsuit ordinarily must pay his or her own attorney fees." (Musaelian v. Adams (2009) 45 Cal.4th 512, 516.) "Code of Civil Procedure section 1021 codifies the rule, providing that the measure and mode of attorney compensation are left to the agreement of the parties "[e]xcept as attorney's fees are specifically provided for by statute." (Ibid.)

Defendants argue

that Plaintiffs do not allege any statutory or contractual basis to support a claim for attorney's fees. Defendants argue that Exhibit A, attached to the FAC, is from a different unit. However, no exhibit is attached to the FAC.

In opposition, Plaintiffs do not address Defendants' argument.

In the FAC presented before the Court, there is no basis for a claim for attorney's fees.

Thus, the Court grants Defendants' motion to strike attorney's fees.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

In the opposition to the demurrer, Plaintiffs state, "[I]f the court finds any defects in the Complaint for Plaintiffs respectfully request leave to amend." The burden is on the Plaintiffs to show the Court that the pleading can be successfully amended. The opposition to the demurrer and motion to strike do not support granting leave to amend. The Court will give Plaintiffs an opportunity to argue whether to grant leave to amend.

Conclusion

Defendants

LA Colima 2010 LLC and Apartment Management Consultants, LLC's demurrer is sustained as to the fourth cause of action for intentional infliction of emotional distress.

Defendants

LA Colima 2010 LLC and Apartment Management Consultants, LLC's motion to strike is granted in its entirety.